

24TRCV00159 24TRCV00159

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-23

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Case Number: 24TRCV00159 Hearing Date: September 23, 2026 Dept: B

Moving

Parties: Receiver GS Strategies, Inc.

Responding

Party: None

Motion

for Order Approving (1) the Receiver's Final Report and Accounting; (2) the Receiver's Final Fees and Costs; (3) the Proposed Distribution of the Remaining Funds; (4) Exonerating the Receiver's Undertaking; and (5) Discharging the Receiver

The Court considered the moving papers and final report and accounting. No opposition was filed.

BACKGROUND

On January

17, 2024, plaintiff and petitioner City of Rolling Hills, on behalf of the People of the State of California filed a complaint for nuisance per se against Milton Street Residential Acquisitions, Inc. and Christine Price Beedle and petition for appointment of a receiver.

On

January 15, 2025, an order was entered appointing receiver GS Strategies, Inc.

On

January 27, 2025, GS Strategies posted a receiver bond.

On

February 4, 2025, GS Strategies filed an initial inventory report.

On

August 12, 2025, the Court granted defense counsel's motion to be relieved as counsel of defendant Beedle.

On

September 24, 2025, the Court entered an order approving the Receiver's proposed remediation plan and financing plan, issuance of a first-priority Receiver's certificate of indebtedness, and the Receiver's and City's fees and costs.

On May

1, 2026, the Court entered an order approving the sale of the property, the Receiver's and the City's interim expenses, and the distribution of funds from the sale of the property.

LEGAL AUTHORITY

Cal.

Rules of Court, Rule 3.1184 states: "(a)

Motion or stipulation - A receiver must present by noticed motion or stipulation of all parties:

(1) A final account and report;

(2) A request for the discharge;

and

(3) A request for exoneration of the receiver's surety.

(b) No

memorandum required - No memorandum needs to be submitted in support of the motion or stipulation served and filed under (a) unless the court so orders.

(c)

Notice - Notice of the motion or of the stipulation must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim

that will be affected by the order or stipulation, whether or not the person or entity is a party to the action or has appeared in it.

(d)

Claim for compensation for receiver or attorney - If any allowance of compensation for the receiver or for an attorney employed by the receiver is claimed in an account, it must state in detail what services have been performed by the receiver or the attorney and whether previous allowances have been made to the receiver or attorney and the amounts."

Health

and Safety Code §17980.7(c) states, in part:

"The receiver shall be discharged when the conditions cited in the notice of violation have been remedied in accordance with the court order or judgment and a complete accounting of all costs and repairs has been delivered to the court. Upon removal of the condition, the owner, the mortgagee, or any lienor of record may apply for the discharge of all moneys not used by the receiver for removal of the condition and all other costs authorized by this section.

(10)

After discharging the receiver, the court may retain jurisdiction for a time period not to exceed 18 consecutive months, which may be extended by order of the court to ensure continuing compliance, and require the owner and the enforcement agency responsible for enforcing Section 17980 to report to the court in accordance with a schedule determined by the court.

(11)

The prevailing party in an action pursuant to this section shall be entitled to reasonable attorney's fees and court costs as may be fixed by the court."

DISCUSSION

Receiver GS Strategies, Inc. requests an order pursuant to Cal. Rules of Court, Rule 3.1184 (1) approving the Receiver's final report and accounting; (2) approving the Receiver's final fees and costs; (3) approving the distribution of the remaining receivership funds; (4) exonerating the Receiver's undertaking; and (5) discharging the Receiver.

The Court finds that the motion meets the requirements

under Cal. Rules of Court, Rule 3.1184.

After consideration of the final report and accounting, the Court is inclined to grant the motion at the hearing.

The Court finds that the conditions cited in the notice of violation have been remedied in accordance with the Court order and a complete accounting of all costs and repairs has been delivered to the Court.

ORDER

The motion is GRANTED.

The Receiver shall give notice.